

25STCV12377 25STCV12377

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Case Number: 25STCV12377 Hearing Date: August 3, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/03/2026

CASE NUMBER: 25STCV12377

CASE NAME: ALLSTATE INSURANCE COMPANY vs JINYU CHENG, et al.

MOVING PARTY: Plaintiff Allstate Insurance
Company

OPPOSING PARTY: Defendant Gladys Bursey

PROCEEDING: Motion to compel [Form Interrogatories]

RULING SUMMARY: Plaintiff Allstate Insurance Company's
Motion to Compel Defendant Gladys Bursey's Responses to Form Interrogatories
(Set One) is moot.

Plaintiff Allstate Insurance Company's
Request for Sanctions in the amount of \$675 is granted. Plaintiff's request for
sanctions in the amount of \$675 is granted. The sum shall be paid to Plaintiff's counsel in
monthly payments of \$65 on the first of the month commencing on September 1,
2026 and continuing until paid in full.

Background

On April

28, 2025, plaintiff Allstate Insurance Company ("Plaintiff") filed a Complaint against defendants Jinyu Cheng ("Cheng") and Gladys Bursey ("Bursey") alleging four causes of action for (1) Negligence, (2) Nuisance, (3) Trespass, and (4) Breach of Contract.

Plaintiff

alleges that, at all times relevant, it was the insurer for Maria Cervantes Magana ("Insured"), who was the owner of the real property located at 1301 S. Greenwood Avenue, Unit 36, City of Montebello, County of Los Angeles, State of California (the "Property"); Cheng was the owner of 1301 S. Greenwood Avenue, Unit 37, City of Montebello, County of Los Angeles, State of California ("Chen's Property"), located above the Property; and Bursey was a tenant in Chen's Property who was responsible for the maintenance, supervision, inspection, care and/or control of said property. Plaintiff alleges that on or about July 30, 2022, a fire occurred in Chen's Property as a result of Bursey's negligent care, control, and maintenance of incense and the fire migrated to the Subject Property, causing damages.

On May

29, 2025, Bursey filed her Answer. On June 23, 2025, Chen filed his Answer.

On May

18, 2026, Plaintiff filed this Motion to Compel Defendant Gladys Bursey's Responses to Form Interrogatories (Set One) and Request for Monetary Sanctions ("Motion to Compel") against Bursey.

On July

20, 2026, Bursey filed her Opposition. On July 24, 2026, Plaintiff filed its Reply.

LEGAL

STANDARD

Code of Civil Procedure section 2030.290 provides that a party may bring a motion to compel responses to interrogatories, where the responding party failed to serve a timely response. Unless otherwise agreed, the responding party is required to serve response within 30 days after service of the discovery demand for production documents. (Code Civ. Proc. §2030.290(b).) If the responding party fails

to serve a timely response, the party “waives any objection to the demand, including one based on privilege or on the protection for work product . . .” (Code Civ. Proc. § 2030.290(a).) The requesting party need not demonstrate “good cause to compel responses, nor that it satisfied the “meet and confer” requirement. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 143 Cal.App.4th 390, 404.)

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Responses to interrogatories are due within 30 days after service of interrogatories. (Code Civ. Proc. § 2030.260.) “The party propounding interrogatories and the responding party may agree to extend the time for service of a response to a set of interrogatories, or to particular interrogatories in a set, to a date beyond that provided in Section 2030.260.” (Code Civ. Proc. § 2030.270(a).) While this agreement may be informal, it must be confirmed in writing. (Code Civ. Proc. § 2030.270(b).)

DISCUSSION

At

issue are the form interrogatories Plaintiff propounded to Bursey on December 1, 2025 and February 11, 2026. (Decl. Thomas Palecek (“Palecek”) at ¶¶ 4-5, Exh. A and B.) Plaintiff asserts that, as of filing this motion, Bursey has not provided responses. (Id. ¶ 11.) Plaintiff seeks sanctions under sections 2030.290(c), 2023.010, and 2023.030 et seq. of the Code of Civil Procedure in the amount of \$675.00 for time spent on this motion.

Bursey asserts

that she did not receive the propounded discovery, asked for the documents to be resent, and believed she had served all responses and, only upon obtaining a free legal consultation, learned that separate responses were required and has now served her responses to the propounded form interrogatories. Bursey contends that an order compelling initial responses is no longer necessary and monetary sanctions would be unjust. Among other issues, Bursey asserts that she earns approximately \$24.00/hour, and a payment of \$675.00 would be a serious hardship and interfere with her ability to pay ordinary living expenses.

Plaintiff

confirms that responses have now been received. (Reply 2:16.) Plaintiff argues

that sanctions are still warranted due to Bursey's decision not to respond which constitutes an abuse of the discovery process and forced Plaintiff to file this motion.

The

Motion to Compel is moot as to the responses themselves. The Court turns to the request for sanctions.

Bursey

cannot use her status as a self-represented litigant to justify failure to respond. (See *Nuño v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 ["Thus, as a general principle, a self-represented litigant who is not indigent 'must expect and receive the same treatment as if represented by an attorney—no different, no better, no worse.' (Taylor, *supra*, at p. 1009.) This principle was restated by our Supreme Court: "[W]e make clear that mere self-representation is not a ground for exceptionally lenient treatment. . .".])

Code of

Civil Procedure section 2030.290 provides:

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that one subject to the sanction acted with substantial justification or that other circumstances made the imposition of sanctions unjust.

Code of

Civil Procedure section 2023.030 provides:

The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or

that other circumstances make the imposition of the sanction unjust.

While Bursey

might be indigent, this does not render her insusceptible to sanctions. (See Code Civ. Proc. §§ 2030.29, 2030.30 [no exemptions for indigent litigants]; see also Taggares v. Superior Court (1998) 62 Cal.App.4th 94, 105 [holding that it is not "fair nor reasonable" when one party "may be victorious in the discovery dispute and yet unable to recover the expense of obtaining discovery compliance from the other."].) Bursey has offered no documentary evidence to support her statements in her declaration as to her income and expenses.

Plaintiff's

request for sanctions in the amount of \$675 is granted. The sum shall be paid to Plaintiff's counsel in monthly payments of \$65 on the first of the month commencing on September 1, 2026 and continuing until paid in full.

Conclusion

Plaintiff

Allstate Insurance Company's Motion to Compel Defendant Gladys Bursey's Responses to Form Interrogatories (Set One) is moot.

Plaintiff

Allstate Insurance Company's Request for Sanctions in the amount of \$675 is granted. Plaintiff's request for sanctions in the amount of \$675 is granted. The sum shall be paid to Plaintiff's counsel in monthly payments of \$65 on the first of the month commencing on September 1, 2026 and continuing until paid in full.

Date: 08/03/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court